

Form No. HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Crl. Appeal No.18965/2026

Khalid Mehmood vs **The State, etc.**

Sr. No.	Date of order	Order with signature of Judge, and that of parties or counsel, where necessary.
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31.03.2026 Malik Zia Shafiq, Advocate for the appellant.
Mr. Haroon Rasheed, Deputy Prosecutor General for the State (on Court’s call).

Through instant criminal appeal filed under Section: 48 of the Control of Narcotic Substances Act, 1997, **Khalid Mehmood** (appellant/accused in case arising out of F.I.R. No.28/2024 dated: 23.05.2024 registered under Sections: 9 (1) 2(d), 14 and 15 of the Control of Narcotic Substances Act, 1997 at Police Station: ANF, District: Faisalabad) has challenged the vires of order dated: 26.01.2026 passed by learned Additional Sessions Judge, Faisalabad/trial court, whereby application under Section: 265-K Cr.P.C. filed by him for his acquittal, has been dismissed; relevant portion of the impugned order is hereby reproduced as under:-

“3. Perusal of record reveals that after hearing the arguments at length reached to the conclusion that now PSFA forensic laboratory is an authentic laboratory of the Asia. Complete detailed report of PFSA was received and available on record. As per record petitioner/ Khalid Mehmood was caught red-handed by the police. He alongwith his co-accused got recovered 50 nylon sacks of poppy straw, on weighing, each of the aforesaid sacks came to 48 kilograms, making total of 2400 kilograms of poppy straw which is heavy quantity of narcotics material, detail of which has been mentioned in recovery memo which is on the file. Accused has been charge-sheeted and case is fixed for evidence. Such type of accused are social enemy who transporting such type of narcotics and material and provide the same to young generation for destroying their lives and future, therefore, Such types of people are not entitled to any kind of leniency. The accused was charge-sheeted on 23.09.2024. Now case was fixed for summoning of prosecution witnesses through non-bailable warrant of arrest through SHO concerned. SHO is directed to appoint any responsible person to procure the attendance of witnesses. At this stage, this petition is premature as after recording of evidence of the prosecution and hearing arguments of both side, the case will be decided on merits. Hence, this petition u/s 265-K Cr.P.C. is dismissed. This application be attached with the main case file.”

2. Brief however necessary facts for decision of instant appeal are that as per case of prosecution, poppy straw weighing 2400-kilograms was recovered from present appellant and his co-accused who were transporting the same, report under Section: 173 Cr.P.C. was submitted in the Court, copies under Section: 265-C Cr.P.C. were delivered to the accused persons including present appellant and charge was framed against them on 23.09.2024; copy of the charge sheet is available at Page No.10-11 of instant appeal and the same is hereby scanned below for ready reference: -

11
Trial No. _____
The State
Versus

- 1. Khalid Mehmood son of Noor Din, aged about 50 years, R/o Qanoongoi, P.O. Nidalah, Selehrian, Shakargarh District Narowal.
- 2. Sajjad Saheb son of Abbas Ali, aged about 39 years, R/o P.O. Khas Chak No.270/RB, Majhiwal, Tehsil Faisalabad Sadar District Faisalabad.

Case FIR No.28/2024 dated 23.05.2024.
Offence U/Ss. 9(1)2(d) & 15 of CNSA, 1997
(amended in 2022).
P.S ANF, Faisalabad.

Charge Sheet

I, Muhammad Iqbal Haral, Addl. Sessions Judge/Judge Special Court CNS Faisalabad hereby charge you the above named accused as under:

Firstly: That on 23.05.2024 at 02:00 A.M, in the area of near Amin Pur Interchange M-4 South, Faisalabad, within the territorial jurisdiction of Police Station ANF Faisalabad, Khalid Mehmood, you accused were apprehended by ANF raiding team headed by Arif Lodhi Inspector from driving seat of orange colour truck bearing registration No.LES-13-942, while Sajjad Saheb, you accused were apprehended by ANF raiding team from front seat of the said truck and 50 nylon sacks of poppy straw, out of which 40 sacks were of orange colour and 10 sacks were of white colour, were recovered from possession of both of you which you got recovered from the backside of the aforesaid truck. On weighing, each of the

Muhammad Iqbal Haral
Addl. District & Sessions Judge
Faisalabad.

ATTESTED
27 OCT 2025
For District Officer to
District & Sessions Judge

aforesaid sacks came to 48 kilograms, making total of 2400 kilograms of poppy straw. Thus you both accused committed an offence punishable under section 9(1)2(d) of CNSA, 1997 (amended in 2022) which is within the cognizance of this court.

Secondly; That on the same date, time and place, within the territorial jurisdiction of police station ANF Faisalabad, you the above named accused persons were transporting 50 nylon sacks of poppy straw weighing 2400 kilograms collectively with the consultation, facilitation, abetment and assistance of each other in orange colour truck bearing registration No.LES-13-942, in violation of the provisions of section 14 of CNSA, 1997 and committed an offence punishable under section 15 of CNSA which is within the cognizance of this court.

And, I hereby direct that you the above named accused be tried by this court under the aforesaid charges.

Dated:
23.09.2024


Addl. Sessions Judge/
ASJ/Judge Special Court CNS,
Faisalabad

It is certified that the charge has been read over and explained to the accused in their own language, in the open court to which they pleaded not guilty and claimed trial. Let their pleas be recorded separately.

Dated:23.09.2024.


Addl. Sessions Judge/
ASJ/Judge Special Court CNS,
Faisalabad

Present appellant and his co-accused namely Sajjad Saheb denied the charge and claimed trial, examination-in-chief of Muhammad Bilal, H.C/Moharrir was recorded as PW-1 on 26.02.2025 however cross-examination over him was reserved on behalf of the accused persons; application under Section: 265-K Cr.P.C. was filed by present appellant, which was dismissed *vide* aforementioned order dated: 26.01.2026 passed by the trial court and the same has been impugned herein through instant appeal.

3. Learned counsel for the appellant submits that impugned order is against the law and facts of the case therefore same is liable to be set aside.

On Court's query, he submits that though report of Punjab Forensic Science Agency in this case has been received yet same has still not been exhibited in the case.

4. Learned Deputy Prosecutor General has supported the impugned order.

5. **Arguments heard and record appended with the appeal perused.**

6. It has been noticed that as per case of prosecution, poppy straw weighing 2400-kilograms was recovered from present appellant and his co-accused. Poppy Straw has been defined under Section: 2 (w) of the Control of Narcotic Substances Act, 1997 and for ready reference, same is hereby reproduced as under: -

“Section: 2 (W)

“poppy straw” means all the parts, except the seeds, of the opium poppy after mowing;”

(emphasis added)

Perusal of aforementioned definition clearly reveals that “poppy straw” means all the parts, except the seeds, of the opium after mowing. It (poppy straw) is a narcotic drug as defined under Section: 2(s) of the Act (*ibid*), which is hereby reproduced below for ready reference: -

“Section: 2 (s)

““narcotic drug” means coca leaf, cannabis, heroin, opium, poppy straw and all manufactured drugs;”

(emphasis added)

Furthermore, it has been categorically mentioned in Section: 6 of the Act (*ibid*) that no one shall produce, manufacture, extract, prepare, **possess**, offer for sale, sell, purchase, distribute, deliver, **transport**, dispatch, any **narcotic drug**, psychotropic substance or controlled substance; for ready reference, Section: 6 of the Act (*ibid*) is hereby reproduced as under: -

“6. Prohibition of possession of narcotic drugs etc.– No one shall produce, manufacture, extract, prepare, possess, offer for sale, sell, purchase, distribute, deliver on any terms whatsoever, transport, dispatch, any narcotic drug, psychotropic substance or controlled substance, except for medical, scientific or industrial purposes in the manner and subject to such conditions as may be specified by or under this Act or any other law for the time being in force.”

(emphasis added)

Similarly, import of narcotic drug into Pakistan, export from Pakistan, **transport** within Pakistan or tranship of **any narcotic drug**, psychotropic substance or controlled substance has been prohibited under Section: 7 of the Act (*ibid*), which is hereby reproduced below for ready reference: -

“7. Prohibition of import or export of narcotic drugs, etc.–

(1) No one shall–

(a) import into Pakistan;

(b) export from Pakistan;

(c) transport within Pakistan; or

(d) tranship

any narcotic drug, psychotropic substance or controlled substance, save in accordance with rules made under sub-section (2) and in accordance with the conditions of any licence, permit or authorization for that purpose which may be required to be obtained under those rules.

(emphasis added)

(2) The Federal Government may make rules permitting and regulating the import into and export from Pakistan, transport within Pakistan and transshipment of narcotic drugs, psychotropic substances or controlled substances, and such rules may prescribe the ports or places at which any kind of narcotic drug, psychotropic substance or controlled substance may be imported, exported, transported within Pakistan or transhipped, the form and conditions of license, permit or authorities by which such licences, permits or authorization may be granted, the fees that may be charged therefor, any other matter required to have effective control of the Federal Government over such import, export, transportation and transshipment.”

Likewise, **trafficking** in or financing the **trafficking of** narcotic drugs etc. has also been prohibited under Section: 8 of the Act (*ibid*), which is also hereby reproduced as under: -

“8. Prohibition on trafficking or financing the trafficking of narcotic drugs etc.– No one shall– (a) organize, manage, **traffic in**, or finance the import, transport, manufacturing or **trafficking of, narcotic drugs**, psychotropic substances or controlled substances; or
(b) use violence or arms for committing or attempt to commit an offence punishable under this Act.”

(emphasis added)

Contravention of Sections: 6, 7 and 8 (mentioned above) has been made punishable under Section: 9 of the Act (*ibid*) and punishment to the extent of “Post (پوست)” or “Poppy Straw” has been mentioned in Section: 9(1) 2(a), (b), (c) and (d) of the Act (*ibid*) which are scanned below for ready reference: -

"9. Punishment for contravention of sections 6, 7 and 8.-
(1) Whoever contravenes the provisions of sections 6, 7 and 8 regarding narcotic drugs shall be punished with punishment as given in column (3) of the TABLE below with regard to offence committed as mentioned in column (2) thereof, namely:-

2	Post or poppy straw	(a) Up to 999 grams.	imprisonment which may extend to four years but shall not be less than eight months along-with fine which may be up to twenty thousand rupees.
		(b) 1000 grams to 9999 grams.	imprisonment which may extend to eight years but shall not be less than four years along-with fine which may be up to two hundred thousand rupees but shall not be less than twenty thousand rupees.
		(c) 10000 grams to 14999 grams.	imprisonment which may extend to fourteen years but shall not be less than eight years along-with fine which may be up to three hundred thousand rupees but not less than two hundred thousand rupees.
		(d) 15000 grams or more.	imprisonment which may extend to life imprisonment but shall not be less than fourteen years along-with fine which shall not be less than three hundred thousand rupees.

Allegation against appellant and his co-accused is that Poppy Straw weighing 2400-kilograms was recovered from them who were transporting the same, therefore, charge has been rightly framed against them and for proving the same, prosecution has legal right to produce the evidence, and Muhammad Bilal HC/ Moharrar has been produced as PW-1 whose examination in chief has been recorded and cross-examination over him has been reserved on behalf of the accused persons.

It is relevant to mention here that cases which are to be tried by the Magistrate under Chapter XX of the Code of Criminal Procedure Code, 1898 (hereinafter to be referred as “Code”), Magistrate has the power to acquit the accused at any stage of the case under Section: 249-A of the Code (*ibid*) if after hearing the prosecutor and the accused and for reasons to be recorded, he considers that the charge is groundless or that there is no probability of the accused being convicted of any offence; for ready reference, Section: 249-A of the Code (*ibid*) is hereby reproduced as under: -

“[249-A. Power of Magistrate to acquit accused at any stage. Nothing in this Chapter shall be deemed to prevent a Magistrate from acquitting an accused at any stage of the case if, after hearing the prosecutor and the accused and for reasons to be recorded, he considers that the charge is groundless or that there is no probability of the accused being convicted of any offence.]”

And for the cases triable by Court of Sessions under Chapter XXII-A of the Code (*ibid*), Court can acquit the accused at any stage of the case if after hearing the prosecutor and the accused and for the reasons to be recorded, it considers that there is no probability of the accused being convicted of any offence; Section: 265-K of the Code (*ibid*) is also hereby reproduced below for ready reference: -

“265-K. Power of Court to acquit accused at any stage. Nothing in this Chapter shall be deemed to prevent a Court from acquitting an accused at any stage of the case, if, after hearing the prosecutor and the accused and for reasons to be recorded, it considers that there is no probability of the accused being convicted of any offence.”

When language of Section: 249-A is compared with the language of Section: 265-K of the Code (*ibid*), then it becomes crystal clear that Magistrate can acquit the accused at any stage of the case under Section: 249-A Cr.P.C. if he considers that the charge is groundless or there is no probability of the accused being convicted of any offence whereas under Section: 265-K Cr.P.C., Court can acquit the accused at any stage of the case only if he considers that there is no probability of

the accused being convicted of any offence and the reason for acquittal that charge is groundless, is not included in the same.

It is quite understandable that legislature in its wisdom gave power under Section: 249-A Cr.P.C. to the Magistrate to acquit the accused at any stage of the case if charge is groundless or there is no probability of conviction for the reason that punishments for the offences triable by the Court of Magistrates are lesser as compared to the punishments provided for the offences triable by the Court of Sessions, therefore, if Magistrate comes to the conclusion that on the basis of material/evidence available on the record, charge is groundless, he can acquit the accused under Section: 249-A Cr.P.C. and furthermore, if he finds that such material has come on the record that now there is no probability of the accused being convicted of any offence, he can also acquit the accused under Section: 249-A Cr.P.C. whereas since offences triable by the Court of Sessions are of heinous/serious nature entailing heavy punishments, therefore, acquittal of the accused on the basis of charge is groundless is not provided in Section: 265-K Cr.P.C. and prosecution is to be afforded full and complete opportunity to produce evidence for proving the case and in this regard, Subsection 2 of Section: 265-F Cr.P.C. can also be safely referred, according to which, Court shall ascertain from the Public Prosecutor or, as the case may be from the complainant, the names of any persons likely to be acquainted with the facts of the case and to be able to give evidence for the prosecution, and shall summon such persons to give evidence before it; for ready reference, Subsection: 2 of Section: 265-F Cr.P.C. is hereby reproduced below: -

“265-F.....(2) The Court shall ascertain from the Public Prosecutor or, as the case may be, from the complainant, the names of any persons likely to be acquainted with the facts of the case and to be able to give evidence for the prosecution, and shall summon such persons to give evidence before it.”

However, if Court finds that there is no probability of conviction of the accused of any offence only then, he can be acquitted at any stage of the case under Section: 265-K Cr.P.C. i.e. if evidence/material of such nature has come on the record that further evidence of any nature/kind whatsoever cannot result into conviction of the accused, then he can be acquitted under Section: 265-K Cr.P.C.

Nutshell in simple words at the cost of repetition is that under Section: 249-A Cr.P.C. if the material/evidence available on the record makes the charge groundless, accused can be acquitted and similarly, such sort of material/evidence if comes on the record, which has made

the conviction impossible, even then accused can be acquitted under Section: 249-A Cr.P.C. whereas under Section: 265-K Cr.P.C., accused can be acquitted at any stage of the case by the Court of Sessions if such sort of material/evidence comes on the record, which makes the conviction impossible and any further evidence cannot change the result.

Since in this case charge has been framed as per material available on the record, Muhammad Bilal, HC/Moharrar has been produced as PW-1 whose examination-in-chief has been recorded however cross-examination over him has been reserved on behalf of the accused persons and any evidence is not available on the record till now to show that there is no probability of conviction of the accused/appellant of any offence, therefore, in such circumstances, there is no occasion for exercising power under Section: 265-K Cr.P.C. and throttling the case of prosecution at its infancy i.e. initial stage. Furthermore, it is clarified that for invoking power under Section: 265-K Cr.P.C., material/evidence available is not only relevant but material/evidence, which can be produced, and if produced, can cause conviction of the accused of any offence, is also to be considered.

7. In view of what has been discussed above, it has been noticed that impugned order has been passed by learned Additional Sessions Judge, Faisalabad/trial court while keeping in view the peculiar facts and circumstances of the case as well as relevant law on the subject, therefore, same needs no interference by this Court. Hence, instant appeal is without merits and is hereby **dismissed** *in limine*.

(Ali Zia Bajwa)
Judge

(Farooq Haider)
Judge

Approved for reporting

(Ali Zia Bajwa)
Judge

(Farooq Haider)
Judge